



# **Migration (Arrangements for certain business skills visas) Instrument (LIN 21/026) 2021**

made under subregulation 2.07(5) of the

*Migration Regulations 1994*

## **Compilation No. 1**

**Compilation date:** 06 December 2024

**Includes amendments:** *Migration (Arrangements for certain business skills visas)  
Amendment (LIN 24/078) Instrument 2024 [F2024L01417]*

Prepared by the Department of Home Affairs

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## About this compilation

### This compilation

This is a compilation of the *Migration (Arrangements for certain business skills visas) Instrument (LIN 21/026) 2021* that shows the text of the law as amended and in force on 06/12/2024 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

### Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register ([www.legislation.gov.au](http://www.legislation.gov.au)). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

### Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

### Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

### Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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**1 Name**

This instrument is the *Migration (Arrangements for certain business skills visas) Instrument (LIN 21/026) 2021*.

**3 Definitions**

In this instrument:

***authorising email*** means an email sent by an officer of the Department, authorising an applicant to make an application using an alternative form, in an alternative place or in an alternative manner.

***Department*** means the Department of Home Affairs.

***Regulations*** means the *Migration Regulations 1994*.

**4 Approved form, manner and place**

For subregulation 2.07(5) of the Regulations, the approved form, manner and place for an application for a visa of a class and subclass mentioned in an item of Schedule 1 are the form and the manner and place mentioned in the item.

## Schedule 1 **Approved form, manner and place**

(s.4)

| Item | Item of Regulations, Schedule 1 | Visa class and subclass                                                                                                                                                                                                                        | Approved form                                                                                                                                                                                                                                                                                                                                                | Manner and place                                                                                                                                                                                                                                                                                                                                                      |
|------|---------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1    | 1104AA                          | Business Skills Business Talent (Permanent) (Class EA)<br><i>Subclass 132 (Business Talent) visa</i>                                                                                                                                           | Form 1396 (Internet)                                                                                                                                                                                                                                                                                                                                         | As an internet application                                                                                                                                                                                                                                                                                                                                            |
| 2    | 1104BA                          | Business Skills (Permanent) (Class EC)<br><i>Subclass 888 (Business Innovation and Investment Provisional)</i>                                                                                                                                 | Form 1398 (Internet)                                                                                                                                                                                                                                                                                                                                         | As an internet application                                                                                                                                                                                                                                                                                                                                            |
| 3    | 1202B                           | Business Skills (Provisional) (Class EB)<br><i>Subclass 188 (Business Innovation and Investment Provisional)</i>                                                                                                                               | Form 1397 (Internet)                                                                                                                                                                                                                                                                                                                                         | As an internet application                                                                                                                                                                                                                                                                                                                                            |
| 4    | 1104B                           | Business Skills (Residence) (Class DF)<br><i>Subclass 890 (Business Owner)</i><br><i>Subclass 891 (Investor)</i><br><i>Subclass 892 (State/Territory Sponsored Business Owner)</i><br><i>Subclass 893 (State/Territory Sponsored Investor)</i> | (a) for applicant seeking to satisfy the criteria for the grant of a Subclass 890 (Business Owner) visa—Form 47BU and Form 1217; or<br>(b) for applicant seeking to satisfy the criteria for the grant of a Subclass 891 (Investor) visa—Form 47BU; or<br>(c) for applicant seeking to satisfy the criteria for the grant of a Subclass 892 (State/Territory | Application must be made by:<br>(a) post, with correct prepaid postage to: Adelaide Business Skills Processing Centre, Department of Home Affairs, GPO Box 2399, Adelaide SA 5001, Australia; or<br>(b) courier service delivery to: Adelaide Business Skills Processing Centre, Department of Home Affairs, Level 4, 70 Franklin Street, Adelaide SA 5000, Australia |

| Item | Item of Regulations, Schedule 1 | Visa class and subclass                                                     | Approved form                                                                                                                                                                                                                               | Manner and place                                                                                                                                                                                                                                                                                           |
|------|---------------------------------|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      |                                 |                                                                             | Sponsored Business Owner) visa—<br>Form 47BU,<br>Form 1217 and<br>Form 949; or<br>(d) For applicant seeking to satisfy the criteria for the grant of a Subclass 893 (State/Territory Sponsored Investor) visa—<br>Form 47BU and<br>Form 949 |                                                                                                                                                                                                                                                                                                            |
| 5    | 1113                            | National Innovation (Class BX)<br><i>Subclass 858 (National Innovation)</i> | Form 47NI (Internet); or<br>if authorised in an authorising email—<br>Form 47NI                                                                                                                                                             | Application must be made:<br>(a) if using Form 47NI (Internet), as an internet application;<br>or<br>(b) if using Form 47NI:<br>(i) by email to the official email address of the Department specified in the authorising email; and<br>(ii) before the end of the period stated in the authorising email. |

## Section

| Item | Item of Regulations, Schedule 1 | Visa class and subclass                                                                                                                                                                                                                                                                                                                                                                                                                                                           | Approved form                                                                                             | Manner and place                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|------|---------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 6    | 1202A                           | <p>Business Skills (Provisional) (Class UR)</p> <p><i>Subclass 160 (Business Owner (Provisional))</i></p> <p><i>Subclass 161 (Senior Executive (Provisional))</i></p> <p><i>Subclass 162 (Investor (Provisional))</i></p> <p><i>Subclass 163 (State/Territory Sponsored Business Owner (Provisional))</i></p> <p><i>Subclass 164 (State/Territory Sponsored Senior Executive (Provisional))</i></p> <p><i>Subclass 165 (State/Territory Sponsored Investor (Provisional))</i></p> | <p>Form 47BT and 1 of the following:</p> <p>(a) Form 1136;</p> <p>(b) Form 1137;</p> <p>(c) Form 1139</p> | <p>Application must be made:</p> <p>(a) if the applicant's residential address, provided to the Department using Form 47BT, is in Taiwan or the People's Republic of China (including Hong Kong and Macau)—by courier service delivery to:<br/>         Australian Consulate General,<br/>         24th Floor, Harbour Centre,<br/>         25 Harbour Road, Wanchai,<br/>         Hong Kong; or</p> <p>(b) in any other case:</p> <p>(i) by post, with correct prepaid postage to:<br/>         Adelaide Business Skills Processing Centre,<br/>         Department of Home Affairs,<br/>         GPO Box 2399<br/>         Adelaide SA 5001<br/>         Australia; or</p> <p>(ii) by courier service delivery to:<br/>         Adelaide Business Skills Processing Centre,<br/>         Department of Home Affairs,<br/>         Level 4,<br/>         70 Franklin Street,<br/>         Adelaide SA 5000,<br/>         Australia</p> |

## Endnotes

### Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

### Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

### Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

### Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

## Endnotes

### Endnote 2—Abbreviation key

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#### Endnote 2—Abbreviation key

|                                                                    |                                                                        |
|--------------------------------------------------------------------|------------------------------------------------------------------------|
| ad = added or inserted                                             | orig = original                                                        |
| am = amended                                                       | par = paragraph(s)/subparagraph(s)<br>/sub-subparagraph(s)             |
| amdt = amendment                                                   | pres = present                                                         |
| c = clause(s)                                                      | prev = previous                                                        |
| C[x] = Compilation No. x                                           | (prev...) = previously                                                 |
| Ch = Chapter(s)                                                    | Pt = Part(s)                                                           |
| def = definition(s)                                                | r = regulation(s)/rule(s)                                              |
| Dict = Dictionary                                                  | reloc = relocated                                                      |
| disallowed = disallowed by Parliament                              | renum = renumbered                                                     |
| Div = Division(s)                                                  | rep = repealed                                                         |
| exp = expires/expired or ceases/ceased to have<br>effect           | rs = repealed and substituted                                          |
| F = Federal Register of Legislation                                | s = section(s)/subsection(s)                                           |
| gaz = gazette                                                      | Sch = Schedule(s)                                                      |
| LA = <i>Legislation Act 2003</i>                                   | Sdiv = Subdivision(s)                                                  |
| LIA = <i>Legislative Instruments Act 2003</i>                      | SLI = Select Legislative Instrument                                    |
| (md not incorp) = misdescribed amendment<br>cannot be given effect | SR = Statutory Rules                                                   |
| mod = modified/modification                                        | Sub-Ch = Sub-Chapter(s)                                                |
| No. = Number(s)                                                    | SubPt = Subpart(s)                                                     |
| o = order(s)                                                       | <u>underlining</u> = whole or part not<br>commenced or to be commenced |
| Ord = Ordinance                                                    |                                                                        |



## Endnote 3—Legislation history

## Endnote 3—Legislation history

| Name                                                                                                     | Registration                      | Commencement     | Application, saving and transitional provisions |
|----------------------------------------------------------------------------------------------------------|-----------------------------------|------------------|-------------------------------------------------|
| <i>Migration (Arrangements for certain business skills visas) Instrument (LIN 21/026) 2021</i>           | 01 March 2021<br>(F2021L00171)    | 02 March 2021    | -                                               |
| <i>Migration (Arrangements for certain business skills visas) Amendment (LIN 24/078) Instrument 2024</i> | 05 December 2024<br>(F2024L01417) | 06 December 2024 | -                                               |

**Endnotes**

Endnote 4—Amendment history

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**Endnote 4—Amendment history**

| Provision affected            | How affected                                                                      |
|-------------------------------|-----------------------------------------------------------------------------------|
| section 2 .....               | rep. <i>Legislation Act 2003</i> , s. 48D (auto repeal of commencement provision) |
| section 5 .....               | rep. <i>Legislation Act 2003</i> , s. 48C (auto repeal of repeal provision)       |
| Schedule 1 (table item 5) ... | rs. (F2024L01417)                                                                 |